NEW Purchase Order

PT Shell Manufacturing Indonesia

Purchase Order Number: **4541675684**
PO Date: **07.07.2023**

To:

PT SENTRAL TEHNOLOGI MANAGEMEN
MTH SQUARE LT 3A NO 2 JALAN LETNAN
BIDARA CINA KECAMATAN JATINEGARA
JENDRAL MT HARYONO KAV 10 RT 6 RW 12
JAKARTA TIMUR 13330

Vendor-Number: 68121215

From:

PT Shell Manufacturing Indonesia
TALAVERA OFFICE PARK 22-26 FLOOR
JL. TB. SIMATUPANG KAV 22-26
JAKARTA 12340

Deliver to:

ID4508 Marunda LubProd
PT Shell Manufacturing In
Marunda Center Blok P1 No.1
Bekasi 17211

Billing / Invoice address:

PT Shell Manufacturing Indonesia
(Account Payable Unit)
Talavera Office Park, 22nd Floor
Jl. Letjen TB Simatupang Kav. 22 - 26,
JAKARTA 12430
INDONESIA

Payment Terms: 60 Day from Receipt of Correctly Presented invoice
Currency: IDR

Commercial Contact: Joan Ilagan
Telephone: +6324904098

Commercial Email: Joan-Marie.Ilagan@shell.com
Business Contact: Rina Oktarina
Business Telephone:
Business Email: Rina.Oktarina@shell.com

Price with reference to quotation 007/STM/MKT-SK/AIAG/VI/23Rev.01 dated 22.06.2023 and 022/STM/NB/II/23rev.02 dated 22.06.2023. Please use this Purchase Order number as reference to your invoice.

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Item Number	Material Number	Order Quantity	Price per Unit	Item Value
100		**1 ACT**	**98.600.000 per 1 ACT**	**98.600.000 IDR**

Description:

IATF Consultancy Service

Delivery date: **04.10.2023**

Tax Description: ID-I 11 % Purchases Domestic full rated

Total Order Value: **98.600.000**
Currency: **IDR**

CLOSING NOTES:
For Suppliers enabled on the Ariba network:
- Purchase orders are issued to the Supplier via the Ariba network
- Invoices to Shell must be submitted electronically via Ariba; Invoices submitted via post/email/fax will be REJECTED*
- For assistance navigating the Ariba Network, contact the Ariba Help Center at http://supplier.ariba.com
- Real-time Invoice status is available by logging into your Ariba account, otherwise direct your inquiry to https://apchatbot.shell.com/

For suppliers not (yet) enabled on the Ariba network:
- Purchase orders are issued to the Supplier via email
- Invoices to Shell should be submitted via email (preferred) or postal mail (by exception only)
- Invoice status is available from https://apchatbot.shell.com/

* Unless prohibited by local regulation or instructed otherwise

To avoid invoice rejection Supplier must submit a compliant invoice. The Invoice Requirements Checklist can be downloaded at https://www.shell.com/business-customers/shell-for-suppliers/shell-invoicing-channels-and-invoice-requirements.html

This is a computer generated document and no signature is required.

Generic Terms & Conditions

1.1 These General Terms and Conditions are binding between the Parties and supersede and replace any Seller terms and conditions of sale for the Goods and Services supplied.
1.2 Where a Purchase Order and Contract is issued under the terms of an existing contract, the terms of that existing contract shall prevail and these General Terms and Conditions shall only apply supplementary.
2. Quality assurance
2.1 The Seller shall operate a quality assurance system related specifically to any Goods provided in accordance with any applicable legislative or regulatory requirements. Where required by Shell, the Seller shall demonstrate compliance with all such requirements and shall allow Shell access to premises in order to audit compliance.
3. Supply of products
3.1 The Seller shall supply and provide Goods and Services to Shell as specified in the purchase order in accordance with these General Terms and Conditions. Time shall be of essence.

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3.2 Purchase orders shall be deemed to be accepted by Seller if he doesnt reject them in writing within 5 working days after date of the purchase order.

4 Warranties

4.1 Without prejudice to representations or warranties under law or otherwise given by Seller, the Goods shall be fit for the intended purpose, and Services shall be provided in accordance with highest industry standard.

4.2 The warranty commences on the day of delivery or acceptance of Goods and Services, whichever occurs later. It shall be valid for 6 months or the length of the Seller or Manufacturers standard warranty period, whichever is the longer. The conditions and the period for completing warranty work that apply are the same as for the remedial work in clause 11.

5. Ownership and Risk/inspection

5.1 Title to the Goods vests in Shell on acceptance or payment by Shell whichever is earlier. The risk of any loss or damage to the Goods remains with the Seller until delivery to or acceptance by Shell, whichever is the later.

6. Price

6.1 The Purchase Order and Contract Price are fixed. Prices shall include customs duty (unless specifically exempt), packaging, marking, handling, freight and delivery, insurance, and any other applicable costs and charges.

6.2 The acceptance of Goods and/or Services by Shell at the delivery location specified in the Contract and the delivery by the Seller to Shell of a tax invoice appropriate for VAT purposes (where applicable) shall be a condition precedent to Shells obligations to make payment to the Seller. Where payment is to be made by instalments the Seller shall deliver such a tax invoice prior to each instalment.

7. Payment of Accounts

7.1 Shells standard terms of payment are 60 days from acceptance of the Goods or Services and receipt of a correctly rendered invoice. This may be varied where Shell accepts a discount offered by the Seller for earlier payment.

8. Confidential Information

8.1 Any information provided by Shell to the Seller for the purposes of the supply of Goods and/or Services which is notified by Shell to the Seller as being confidential, shall be kept confidential by the Seller.

9. Assignment and Subcontracting

9.1 The Seller must obtain the prior written approval of Shell to assign or subcontract the Purchase Order and Contract or any part thereof. Approval to assign or subcontract shall not relieve the Seller from any of its obligations under the Purchase Order and Contract, or impose any liability upon Shell to an assignee or a subcontractor.

10. Injury, damage and Insurance

10.1 Shell and the Seller shall each be responsible for all losses, claims and liabilities in connection with the performance of the Contract arising out of injury, disease or death of its own employees or loss of or damage to its or their property, even if caused by the negligence of the other party or its employees, subcontractor or agents, and each shall indemnify the other accordingly.

10.2 The Seller shall be responsible for and shall save, indemnify, defend and hold harmless Shell from and against all claims, losses, damages, costs (including legal costs), expenses and liabilities in respect of personal injury including death or disease or loss of or damage to the property of any third party to the extent that such injury, loss or damage is caused by the negligence or breach of duty (whether statutory or otherwise) of the Seller.

10.3 The Seller shall take out and maintain insurances, including a waiver of subrogation in favour of Shell, in respect of (a) these liabilities and third party liability and (b) motor vehicle third party and passenger insurance, each in the amount of at least #3,000,000 (three million pounds sterling) for any one occurrence, and in addition employers insurance at no less than #5,000,000 (five million pounds sterling) for any one occurrence. The Seller shall comply with all reasonable requests from Shell to see the current certificate(s) of insurance.

10.4 Neither party excludes or restricts its liability for fraud or for death or personal injury resulting from its negligence, but this shall not affect the indemnities given in this Purchase Order and/or Contract.

10.5 Neither party shall be liable to the other for any (a) loss of actual or anticipated profit; (b) losses caused by business interruption; (c) loss of goodwill or reputation; (d) any indirect, special or consequential cost, expense, loss or damage.

11. Remedies

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11.1 If the Seller fails to comply with any of its obligations under the Contract then, notwithstanding that such failure may have been discovered by Shell after delivery or performance, Shell may, at its sole discretion and at the Sellers risk and expense, do any of the following (in combination if appropriate):
11.1.1 terminate the Contract at any time:
11.1.2 reject and return the Goods;
11.1.3 purchase equivalent goods elsewhere;
11.1.4 require the Goods or Services to be replaced or redone;
11.1.5 repair any defects in the Goods or have them repaired by others.
11.2 The Seller shall indemnify Shell against all losses, liabilities, claims, costs, expenses, and damages arising out of the Sellers failure to comply with its obligations under the Contract and the exercise by Shell of its rights under the Contract or at law.
12. Termination
12.1 Shell may terminate the Contract or a Purchase Order in whole or in part by giving no less than one months written notice and in such case reimburse the necessary costs incurred by Seller up to the date of the termination notice where Services are concerned. Shell may also terminate in whole or in part when the Seller has not remedied a breach in accordance with clause 11; becomes bankrupt or insolvent; or is unable to complete the Contract.
13. Governing Law
13.1 The construction and performance of the Contract shall be governed by English law and the English courts shall have exclusive jurisdiction.
13.2 All provisions of the Contract are without prejudice to Shells rights and remedies pursuant to common law, statute or otherwise.
13.3 The Seller shall comply with Shells general business principles as displayed (and updated) on www.shell.com/sgbp.
14. Notices
14.1 All notices, requests, variations, and other communications by both parties are to be in writing and delivered promptly to the appropriate addresses named in the Purchase Order and Contract.
15. Audit
15.1 Shell or its representatives shall have the right, at any reasonable time, to audit and take copies of extracts from the Sellers books, accounts, records and original documents (including computer data) relating to the Contract and the Seller shall maintain such documents for at least two years after termination of the Contract.
16. Waiver
16.1 Failure by either party to enforce a provision of the Purchase Order and Contract shall not be construed as in any way affecting the enforceability in any other instance, or the enforceability of the Purchase Order and Contract as a whole.

IMPORTANT: Please state the Purchase Order number mentioned above when submitting your Invoice to Shell. Without Purchase Order number the payment period doesn't start.